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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT (STANLEY MOSK COURTHOUSE)

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT** **[CONCURRENTLY FILED WITH DECLARATIONS OF TRACEY MERRELL AND KARINA MEDINA IN SUPPORT THEREOF]** **Dept.:** 91 **Hearing:** April 22, 2026

TO DEFENDANTS AND TO THEIR COUNSEL OF RECORD, IF ANY:

Plaintiff, FOX NORMANDIE APARTMENTS, LP, comes before the court to request that the Defendant's motion be denied with prejudice as Defendant's motion has previously brought similar relief and therefore this should be treated like a motion for reconsideration and fails to meet the requirements of CCP § 1008. Lastly the motion fails on the merits because personal service was effectuated, no evidence has been presented to rebut the presumption, and the Defendant is not entitled to any equitable relief.

I. BRIEF STATEMENT OF THE CASE

Relevant facts are all evident from a review of the documents filed with the court. Plaintiff filed its unlawful detainer on October 13, 2022. Defendant, DERRICK L. BEVERLY aka DERRICK LAMONT BEVERLY, was *personally* served with the lawsuit on October 27, 2022, by a registered process server. All unknown occupants were served via substitute service, posting, and mailing on

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the same day. Plaintiff also served the Defendant with information regarding the lawsuit when it filed two (2) requests for entry of default and a Notice that the case was reassigned to Dept. 91. Defendant failed to answer and the case went by way of default on November 21, 2022. The court entered a judgment on November 29, 2022, and issued the Writ of Possession on December 2, 2022. A lockout occurred January 26, 2023, after the sheriffs posted a Notice to Vacate at the property on January 4, 2023. The Defendant was locked out of the property and possession is no longer at issue.

Defendant filed his first Appeal on September 11, 2023, close to a year after judgment was entered in this case. This appeal was dismissed for failure to file an Opening Brief after being placed in Default on January 24, 2024. Defendant filed a second appeal on June 10, 2024, appealing multiple decisions from Department 91 issued in 2022, which were untimely and ultimately dismissed for failure to procure the record and failure to cure the default on September 23, 2024. Defendant filed a 3rd appeal on November 25, 2024, appealing the same judgment rendered on November 29, 2022. Defendant also filed five (5) separate affirmative lawsuits against the Plaintiff seeking redress from the UD lockout and the disposition of his personal property after the lockout. Defendant also filed a Civil Harassment Restraining Order, Case Number, 23STRO00528 on January 26, 2023, the day of the Sheriff lock-out but it was dismissed for failure to prosecute (tenant did not show up). Since then, Defendant has filed or noticed close to twenty (20) motions. In several of those motions, the Defendant sought relief regarding his default judgment and seeking to be placed back in possession. His motions have all been denied.

II. DEFAULT JUDGMENT IS NOT VOID AND SHOULD NOT BE DISTURBED

A. Defendant Mischaracterizes the Record in his Moving Papers.

Defendant's moving papers are replete with inaccuracies and misstatements of the record. Defendant claims that there are inconsistencies because the Court issued an OSC Re: Failure to File Proofs of Service, which has a date of October 16, 2017. (Def. Motion pg. 6 ln 6-13). What Defendant fails to realize is this is a court generated date that is set in every unlawful detainer case and the date of the form is the signed order from the presiding judge at the time. It has no bearing or factual relevance as to the veracity of the service of the lawsuit, nor was it filed by Plaintiff.

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Defendant's motion also asserts that the case was originally assigned to Judge Cheryl Nelson in Department 91, when in fact it was set before Judge Nellon in Department 66, and then reassigned to Judge Hobbs in Department 91 and later reassigned again to Judge Mackenzie in Department 91. *Id*. Additionally, it claims that there were inconsistencies in the proofs of service filed with the Court. (*Id*. lns 16-24). First, there were two proofs of service, one for the Defendant, and one for all unknown occupants pursuant to CCP 415.46. One proof alleges personal service on the Defendant, because he was personally served with the lawsuit. The other proof alleges substitute service on all unknown occupants through service on the Defendant. These are not inconsistent but two wholly separate valid affidavits of separate service. Further, the record has no mention of "John/Jane Doe" or any assertion that service was effectuate through a Hispanic male. Instead, the proof describes the Defendant as being served "Derrick L. Beverly, an individual, BLK/M/5'9/195/BLK HAIR/30 YEARS". *Id.* The number of inconsistent statements and errors in the record fall upon the moving party and his motion should be denied.

B. Defendant was Personally Served by Registered Process Server Under CCP 415.10 and Valid and Consistent Proofs Were Filed.

The record is clear and consistent on the point of service. On October 27, 2022, Defendant was personally served with the present unlawful detainer action at 5:02 PM by registered process server, Carlos Abrego California Registration #6456. (Merrell Decl. ¶¶4-6). All unknown occupants were served by substitute service at the same time pursuant to CCP 415.46. On November 17, 2022, a proof of service form (POS-010) for each serve was filed with the court declaring under penalty of perjury that service was completed upon a "Derrick L. Beverly, an individual, BLK/M/5'9/195/BLK HAIR/30 YEARS". (Merrell Decl. ¶4-6). The aforementioned proof of service enjoys a statutory presumption that service was valid as a business record under Evid. Code §§ 1271 and 647 affect the burden of proof for Plaintiff. If the Defendant does not introduce rebuttal evidence, the trier of fact must find for the Plaintiff in accordance with the presumption. Friedman et al., Cal. Practice Guide: Landlord –Tenant (The Rutter Group) ¶ 9:204.

Here, the Defendant has provided no evidence, declaration, or affidavit to rebut the

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presumption Plaintiff enjoys. The Declaration provided by Defendant is unsigned and therefore not a proper affidavit. Plaintiff asserts that even if the Defendant did provide any affidavit, the credibility that Defendant has weighs against any self-serving statement. While Plaintiff concedes that the fact the affidavit itself serving is not, on its own, enough to overcome the presumption, reviewing Defendant's past conduct in this case demonstrates that his veracity is left wanting. Defendant's moving papers inaccurately represent the descriptions of the proof of service alleging that there is inconsistent in who was served. The filed proofs are consistent and describe the Defendant as a black male, not a Hispanic male as his papers suggest. His moving papers claim to provide exhibits and evidence in support of his motion but fail to actually provide the exhibits. The only document is an unverified conclusory statement that Defendant was not served without any other facts to substantiate his claims. See *Palm Property Investments, LLC v. Yadegar*, 194 Cal. App 4th 1419, 1427-8 (Cal. Ct. App. 2nd 2011)(finding that tenants in a ud action did not overcome the rebuttable presumption under Evid. Code §647, as to the process server because the tenants offered no evidence to show they were not properly served as required under Evid. Code §604).

Further, Defendant has previously taken overt and deliberate action to try to thwart notice, good faith ability to Plaintiff through deception. On multiple occasions, Defendant has sent over "notice" to Plaintiff's counsel whereby some of the text was written in white font so as to deceive the Plaintiff, whilst still alleging compliance with the code. (Merrell Decl. ¶¶ 7-15). Unless the emails are printed or highlighted, the white font does not appear. Plaintiff's counsel discovered this only by happenstance as one attorney had his phone set to dark setting, revealing the white font. Defendant's deliberate actions to deceive the court demonstrate Plaintiff's position that Defendant lacks credibility. Even if the Defendant provided evidence through affidavit, the contents of that affidavit should be scrutinized. As Defendant has provided no evidence to rebut the presumption of valid service, this motion should be denied.

C. Defendant was Provided Legally Sufficient Notice of the Lawsuit on Eight (8) Occasions Prior to Default Judgment and Failed to Act.

Defendant received the 30-day notice to terminate for his intentional destruction of the

property in August 2022. The lawsuit followed and he was personally served with the lawsuit on October 27, 2022. The lawsuit was also posted and mailed on this same date. Further, on November 8, 2022, Plaintiff filed its first request for entry of default (RFD) which is Judicial Council Form CIV-100. Paragraph 6 of the Request for Entry of Default contains a Declaration of Mailing (CCP §587) which states that the Request was mailed first-class postage prepaid to Defendant's last known address, the property that he was ultimately evicted from. On November 21, 2022, a second request for entry of default with the same declaration of service was also mailed to the Defendant. Additionally, the Defendant should have also received notice of the fact that the matter existed because Plaintiff was also required to provide notice of the fact that the matter had been reassigned to a new courtroom. True and correct copies of the service documents are attached to the Declaration of Karina Medina and incorporated by reference. In addition to the mailings from Plaintiff's Counsel's office, Defendant received further notice of the Unlawful Detainer action from the Court. On October 14, 2022, the Court mailed two (2) Notices of Unlawful Detainer (Eviction), one addressed to the Defendant himself and the second addressed to "All Occupants." Therefore, the Defendant received legally sufficient notice of the unlawful detainer eight different times prior to his default judgment. (1) personally, (2) posting on the property, (3) mailing from process server, (4-6) through mail from Plaintiff's counsel's office and (7-8) through mail from the Court.

D. Defendant Failed to Act After Admitting to Receiving the Sheriff Posting.

Even if Defendant still claims he did not get notice of the lawsuit prior to default, he still could have taken action when he did admit to knowing. In Defendant's moving papers, he admits to knowing about the lawsuit on January 4, 2022, when the Sheriffs posted the Notice to Vacate at the premises. The lockout did not occur for close to three (3) weeks after that date. This amount of time is substantial as it is more than three times the amount of time to respond to the lawsuit in the first place. Defendant could have filed an ex-parte motion to set aside his default, yet his moving papers show no evidence he took any action at all. *See Rodriguez v. Henard,* 174 Cal. App. 4th 529, 538 (Cal. Ct. App. 5th 2009) (holding that relief from default was not warranted because whether or not defendants received default papers in the mail, it was clear that they learned of the

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default proceedings in plenty of time to attempt to set them aside. Defendant failed to act with any diligence as the first thing filed in the case was close to eight (8) months after the Defendant admits to knowing about the lawsuit.

III. DEFENDANT'S MOTION IS UNTIMELY UNDER CCP 473.5

Defendant's motion also claims relief under CCP§ 473.5 which is defective as it is untimely. "The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered." CCP § 473.5. Here, the default judgment was entered over four (4) years ago rendering this motion as untimely and should be denied.

IV. DEFENDANT's REQUEST HAS BEEN MADE PREVIOUSLY AND THEREFORE IS SUBJECT TO CCP §1008.

Several of the Defendant's motions seek similar remedies and therefore this motion should also provide information to meet the standards of CCP § 1008. There should be a *signed* affidavit to explain what applications were made previously, when those applications were made, to which judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. A motion for reconsideration should be denied where a party fails to provide any fact or circumstance not previously considered and a valid reason for not making the request earlier. *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499. Moreover, it is also the requirement of diligence, meaning the moving party must present a satisfactory reason as to why they failed to bring the additional evidence or facts earlier. *Garcia v. Hejmadi*, (1997) 58 Cal.App.4th 674, 690.

Here, the Defendant has filed several motions seeking similar remedies. In his motion filed December 18, 2023, he requests to "regain entry into the unit" and alleges that there are "falsified documented claims". That motion has no declaration of notice, no declaration, and no evidence attached. Defendant then filed 4 appeals in this case; all of which were dismissed. On October 9, 2025, Defendant filed another moving paper which requested, among many things, "vacatur of

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default judgment" under CCP 473(b),(d). That motion has no declaration of notice, no declaration, and no evidence attached. On the same day an Ex Parte Motion was also filed seeking the same relief to vacate the judgment for lack of notice. On October 15, 2026, Defendant filed an Ex Parte Notice for reconsideration of the motion to vacate, which was also denied. Since this motion has been previously presented to the court, it would require the affidavit compliant with CCP § 1008. Defendant failed to again provide any evidence in support of the present motion and therefore it should be denied for that reason.

Defendant also fails on the diligence requirement as well. Defendant, by his own admission, agrees that at the latest he knew about his default and default judgment on January 4, 2022. It is now, April 14, 2026, over four (4) years later. In no universe can waiting over four (4) years after actual knowledge to seek redress be found reasonable. The statute of limitations on a breach of contract will have already run on this tenancy before he acted to set aside his default.

V. DEFENDANT IS GUILTY OF INEXCUSEABLE NEGLECT

Defendant is also seeking an equitable remedy. In order to qualify for equitable relief, the moving party cannot be guilty of inexcusable neglect. *Aheroni v. Maxwell*, 205 Cal.App.3d 284, 293 (Cal. Ct. App.2nd 1988). This motion was filed again after more than 4 years of actual notice of the default and default judgment. Although Defendant has filed a plethora of affirmative cases, appeals, and motions, none of them properly seek the redress required. The law is clear that this conduct does not support a motion to vacate the default. In *Tammen v County of San Diego* (1967), 66 Cal.2d 468 at 476, the court stated "In cases construing section 473 of the Code of Civil Procedure, it has been held that 'Ignorance of the law, at least where coupled with negligence in failing to look it up, will not justify a trial court in granting relief, and such facts will certainly sustain a finding denying relief.'" Defendant has been made aware of his shortcomings through the minute orders and other court documents, yet he fails to exercise reasonable diligence in curing those defects. In fact, Defendant was recently sanctioned for his continued failure to adhere to court orders and follow the rules of court. These actions demonstrate that Defendant is guilty of inexcusable neglect.

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VI. DEFENDANT FAILS TO MEET BURDEN FOR EQUITABLE RELIEF

A. Defendant Has Failed to Present a Meritorious Case.

A default judgment will not be set aside unless it is likely that the result would be different if the case went to trial. Defendant has not provided the moving papers, but Plaintiff asserts that Defendant will have a difficult time establishing a meritorious defense to this unlawful detainer case. Defendant was provided with thirty (30) day notice to vacate the property after the intentionally defacing and damaging the premises. The Notice itself showed the photos from the CCTV cameras with the hammer in his hand. The Notice to Quit and corresponding Proof of Service were filed as Exhibits 2 & 3 respectively to the Complaint. The service of the Thirty-Day Notice to Quit was completed by Registered Process Server. Said proof of Service enjoys the statutory presumption as a business record under Evidence Code sections 1271 and 647 affecting Defendant's burden of producing evidence. If the Defendant does not introduce rebuttal evidence, other than mere denials, the trier of fact must find for the Plaintiff in accordance with the presumption.

Therefore, Defendant has been provided with more time than required under the law to vacate and cannot establish a defense to the unlawful detainer. Since Plaintiff has not seen the moving papers, it can only assert that the moving papers do not establish a defense and therefore respectfully asks this court to deny the Motion to Set Aside the Default on those grounds as well.

B. Defendant has failed to Present Any Excuse for Not Presenting Defense to Original Case.

Defendant could have and should have brought this motion four (4) years ago, when he was first locked out of the property. He has not ever provided a responsive pleading to any of his pleadings, which is mandated if the moving party wishes to have the judgment set aside and have his day in court. As stated above, CCP 473 states that "[a]application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application **shall not be granted**, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (emphasis added).

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C. Defendant Has Failed to Exercise Diligence in Bringing this Motion.

Defendant clearly has no issues with filing documents with the court in that he has filed four (4) appeals, five (5) affirmative cases, and approximately twenty (20) motions post lockout. Yet he fails to provide any reason he failed to bring the instant motion timely. The first response of any kind to this lawsuit was eight (8) months after the lockout and ten (10) months after his default.

One moving in equity to set aside a default judgment must act diligently in making his motion after he learns of the default judgment.' *McCreadie v. Arques*, 248 Cal. App. 2d at 47 citing (Weitz v. Yankosky, infra, 63 Cal.2d 849, 856—857, 48 Cal.Rptr. 620, 625, 409 P.2d 700, 705; see also 3 Witkin, Cal. Procedure, p. 2133.) This diligence of action has been defined as that which would be exercised by a man of ordinary care and prudence under the circumstances. *Id*. One moving in equity to set aside a default judgment must act diligently in making his motion after he learns of the default judgment, and in determining whether due diligence has been exercised, a court must examine both the time factor and the possible prejudice which might result from setting aside the default. *McCreadie*, 248 Cal. App. 2d at 47. The greater the prejudice, the more timely the relief must be sought. *Id.*

Courts have established that a delay of even a little more than one year fails to reflect diligence. *McCreadie*, 248 Cal. App. 2d at 47 (relief not timely sought by defendant more than a year following written notice that a default had been taken); Lee v. An, 168 Cal App 4th 558, 566 (Cal. Ct. App. 2nd 2008)(27 months does not reflect diligence necessary for equitable relief); Stiles, 147 Cal. App. 3d at 1150 (20-month delay 21 before taking action to set aside judgment fails to demonstrate proper diligence). Here, the Defendant has waited over 4 years and therefore his motion should be denied due to his lack of diligence.

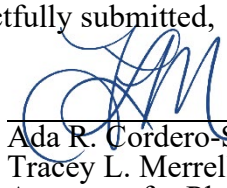
VII. CONCLUSION

Defendant's motion should be denied with prejudice. He has previously brought similar relief and therefore this should be treated like a motion for reconsideration and fails to meet the requirements of CCP § 1008. Lastly the motion fails on the merits because personal service was effectuated, no evidence has been presented to rebut the presumption, and the Defendant is not

entitled to any equitable relief.

DATED: April 14, 2026

Respectfully submitted,

BY 

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Attorneys for Plaintiff

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PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **April 14, 2026,** I served the foregoing document described **PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1738 N. Las Palmas Avenue
Los Angeles, CA 90028
Email: derniercrilamont@yahoo.com;

[X] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

[ ] United States Postal Service Next Day Shipping

[ ] [BY PERSONAL SERVICE] I caused our process server to deliver such envelope by hand to the address above.

[X] [ELECTRONIC SERVICE] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: April 14, 2026

Karina Medina